REDRESSAL, PREVENTION & PROHIBITION OF SEXUAL HARASSMENT AT WORKPLACE POLICY



14.1 Preamble

Jaipuria Institute of Management (JIM) embodies the concept of equality and prohibits all kind of discrimination on the grounds of religion, race, caste, sex or place of birth or any of them. The objective is to create a healthy environment that enables employees to work and students to learn, grow and nurture without fear of prejudice, gender bias and sexual harassment and to be treated with dignity and utmost respect. These rules and regulations have been framed to prevent any kind of sexual harassment within Jaipuria Institute of Management campus/ office premises/Corporate Office or outside, involving its employees / students / vendors / customers / any other persons who in any form deals with the Institute.

14.2 Definitions

1. Aggrieved woman - 'Aggrieved woman' in relation to a workplace means, a woman, of any age whether employed or not, who alleges to have been subjected to any act of sexual harassment by the respondent.

2. Employee – 'Employee' for this policy means a person employed in the institute for any work on regular, temporary, ad-hoc or daily wage basis, either directly or through an agent, including a contractor, with or, without the knowledge of the principal employer , whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied and includes a co-worker, a contract worker, probationer, trainee, apprentice or called by any other such name .

3. Sexual Harassment – 'Sexual Harassment' shall mean and include any one or more of the following unwelcome acts or behaviour (whether directly or by implication) namely: -

   a. Physical contact and advances or

   b. A demand or request for sexual favours or

   c. Making sexually coloured remarks or

   d. Showing pornography or

   e. Any other unwelcome physical, verbal or non-verbal conduct of sexual nature

   The following circumstances, among others, if it occurs or is present in relation or connected with any Act or behaviour of sexual harassment may amount to sexual harassment: -

   a. Implied or explicit promise of preferential treatment in her employment, or

   b. Implied or explicit threat of detrimental treatment in her employment, or

   c. Implied or explicit threat about her present or future employment status, or

   d. Interference with her work or creating an intimidating or offensive or hostile work

   e. environment for her, or

   f. Humiliating treatment likely to affect her health or safety

4. Employer means Director, VP - HR & Vice Chairman

2. The IC for reasons to be recorded in writing, can extend the time limit not exceeding three months, if it is satisfied that the circumstances were such which prevented the woman from filing a complaint within said period.

3. Where the aggrieved woman is unable to make a complaint on account of her physical or mental incapacity or death or otherwise, her legal heir or close relative can make a complaint to the IC.

4. The IC will maintain a register to endorse the complaint received by it and keep the contents confidential, except to use the same for discreet investigation.

14.6 Conciliation Proceedings

1. The IC may before initiating an inquiry and at the written request of aggrieved woman take steps to settle the matter between her and the respondent through conciliation, provided that no monetary settlement shall be made as a basis of conciliation.

2. Where a settlement has been arrived at as mentioned above, the IC shall record the settlement so arrived and forward the same to the Director of the concerned Institute to take action as specified in the recommendation.

3. The IC shall provide the copies of the settlement as arrived at to the aggrieved woman and the respondent.

4. Where a settlement is arrived at as above, no further inquiry shall be conducted by the IC.

14.7 Inquiry into the Complaint

1. In case no conciliation is desired or the terms of conciliation are violated, the IC, where the respondent is an employee, shall proceed to make inquiry into the complaint in accordance with applicable service rules.

2. Where the aggrieved woman informs the IC that any term or condition of the settlement arrived at earlier has not been complied with by the respondent, the IC shall proceed to make an inquiry into the complaint.

3. Where both the parties are employees, parties shall, during the course of the inquiry, be given an opportunity of being heard and a copy of the findings shall be made available to both the parties enabling them to make representation against the findings before the IC.

4. For the purpose of making an inquiry, the IC shall have the same powers as vested in a Civil Court under the Code of Civil Procedure, 1908.

5. The inquiry shall be completed within a period of ninety days.

6. Identity of the aggrieved party or victim or the offender shall not be made public or kept in the public domain especially during the process of inquiry.

14.8 Responsibilities of Internal Committee (IC)

The Internal Committee shall:

a) Provide assistance if an employee or a student chooses to file a complaint with the police;

b) Provide mechanisms of dispute redressal and dialogue to anticipate and address issues through just and fair conciliation without undermining complainant's rights, and minimize the need for purely punitive approaches that lead to further resentment, alienation or violence;

4. However, where employer is unable to make such deduction from the salary of the respondent due to his being absent from duty or cessation of employment, it may direct to the respondent to pay such sum to the aggrieved woman directly.

5. In case respondent fails to pay the sum referred to in clause (4) above, the IC may forward the order for recovery of the sum as an arrear of land revenue to the concerned District officer.

6. Wherever the respondent is a student, depending upon the severity of the offence, the Institute may

   a. with hold privileges of the student such as access to the library, auditorium, transportation, scholarship or identity card.

   b. suspend or strict entry into the campus for a specific period.

   c. expel and strike off the name from the rolls of the institution, including denial of readmission if the offence warrants so

   d. award reformative action like mandatory counselling or performance of community services

14.11 Punishment for False or Malicious Complaint and False Evidence

1. Where the IC arrives at a conclusion that the allegation against the respondent is malicious or the aggrieved woman or any other person making the complaint has made the complaint knowing it to be false or the aggrieved woman or any other person making the complaint has produced any forged or any misleading document , it may recommend to the employer to take action against the woman or the person who has made the complaint in accordance with the provisions of service rules. However, mere inability to substantiate a complaint or provide adequate proof need not attract action against the complainant under this section.

2. Where the IC arrives at a conclusion that during the inquiry any witness has given false evidence or produced any forged or misleading document, it may recommend to the employer of the witness to take action in accordance with the provisions of the Service Rules applicable to said witness or where no such rules exist, in such manner as may be prescribed by the Govt. in this regard.

14.12 Employee Support

1. An employee filing a bonafide harassment complaint shall be protected from reprisals or retaliation as a result of filing the complaint. Investigators will make every effort to strike a balance between the parties' desires for privacy and the need to conduct a fair and effective investigation.

2. The employer shall take all necessary steps to ensure that the contents of the complaint made, the identity and address of the aggrieved woman, respondent and witness, any information related to conciliation and inquiry proceedings, recommendations of the committee and, as the case may be, the action taken on them, shall not be published, communicated and made known to the public, press and media in any manner.

3. Sexual harassment shall be treated as a misconduct under Service Rules

   a) To take action for sexual harassment as a misconduct in accordance with the provisions of the Service Rules applicable to the respondent.

   b) To deduct, notwithstanding anything in the Service Rules applicable to the respondent, from the salary or wages of the respondent such sum as it may consider appropriate to be paid to the aggrieved woman or to her heirs.